



City of Cheyenne Owned Ice and Events Center
1530 W. Lincolnway
Cheyenne, WY 82001

**CITY OF CHEYENNE PARKS AND RECREATION DEPARTMENT
CITY OF CHEYENNE OWNED ICE AND EVENTS CENTER
RENTAL AGREEMENT**

This Agreement ("Agreement"), dated October 1, 2012 is by and between the City of Cheyenne, a municipal corporation, and pertains to the City of Cheyenne Owned Ice and Events Center, operated by the City Parks and Recreation Department, with offices located at 1530 W. Lincolnway, Cheyenne, Wyoming ("the City") and Cheyenne Capitals Youth Hockey Association, a non-profit organization, having its principal office at P.O. Box 1791, Cheyenne, WY, 82003 ("Renter").

WHEREAS, the City owns, manages, and operates the City owned City of Cheyenne Owned Ice and Events Center Complex (the "Center"), located in Cheyenne, Wyoming, and has the power and authority to rent the use thereof to others for the purpose of holding and presenting certain events; and

WHEREAS, Renter desires to rent the use of certain Premises as indicated on Appendix A to this Agreement within the Center from the City, and the City desires to license the use thereof to Renter, for the purpose of holding and presenting youth hockey practices and games (the "Event"), all subject to the terms and conditions set forth in this Agreement.

NOW, THEREFORE, in consideration of the covenants and agreements contained herein, and intending to be legally bound hereby, the parties agree as follows:

1. Premises. The City hereby grants to Renter permission to use those portions of the Center set forth on Appendix A, attached hereto and incorporated herein (the "Premises"), upon the terms and conditions contained herein. Only Renter's members, prospective members, designated representatives and invitees are permitted by this agreement to use the Premises.
2. Term. The period of Renter's use of the Premises shall be October 29th 2012 through March 10th 2013 (the "Term"). In addition to the Term, the City shall make the Center available to Renter, with charge, for (i) preparation of the Event and delivery, move-in and set-up of Renter's freight and other properties beginning at the time set forth on Appendix A, and (ii) load-out immediately following conclusion of the Event, ending no later than the time set forth on Appendix A. Unless otherwise expressly stated herein, or otherwise agreed to in writing, all deliveries and items required for presentation of the Event shall be the sole responsibility of Renter.
3. Purpose. Renter shall be permitted to use the Premises solely for the purpose set forth in Appendix A. Renter is not permitted to use the Premises for other purposes.
4. Fees.
 - (1) In consideration for the City granting Renter permission to use the

Premises, Renter shall pay the City a rent fee according to the following rate schedule:

Prime Time

Monday – Friday 4:00pm – 10:00pm \$200/hr

Saturday - Sunday 7:00am – 10:00pm \$200/hr

Non Prime

Monday- Sunday 10:00pm – 7:00am \$135/hr

Monday – Friday 7:00am – 4:00pm \$150/hr

Renter will not be charged for ice resurfacing. The City will only resurface ice at its discretion. If extra ice resurfacing is requested during practice, games or tournaments, the Renter will be charged the sum of \$50.00.

- (2) Renter shall be allowed to position four trophy cases in the building to display trophies and awards won by the association. Trophies displayed must be contained inside of the cabinets and not on top. Renter must clean and maintain all cases. The City assumes no liability for loss or damage to the cases or their contents.
- (3) The City will allow Renter to display up to fifteen sponsor banners not to exceed 3 x 5ft at the northeast corner of the building. The Renter must place a banner over the area identifying the area to be Cheyenne Capitals sponsors and not advertisers. All sponsor banners will be pre approved through the City prior to installation.
- (4) Renter shall be allowed to place an 8 x 12ft temporary structure on a pre designated area on the east side of the building for storage. The City assumes no liability for theft, damage or loss of either the structure or its contents. Renter agrees that in the event of damage or vandalism repairs shall be made within twenty four hours.
- (5) Renter shall be responsible for reimbursing the City in full, promptly for the cost of repairing any and all damage resulting from Renter's use of the Premises or Center, excepting normal wear and tear. Those who are found to have caused physical damage to the Center facility will be responsible for paying for damages to replace damaged or destroyed property. The City reserves the right to bar any person from use of the Center or Premise after consultation with the Renter.
- (6) In the event that Renter fails to make complete payment of any of the above license fees on or before the specified payment dates, the City may add finance charges equal to 1½% per month (18% per annum) on such unpaid amounts. In the event of default of payment pursuant to Section 18 below, The City reserves the right to terminate this Agreement and retain all fees previously paid by Renter. Costs of collection and reasonable

attorneys' fees incurred in connection therewith shall be paid by Renter.

5. The City's Responsibilities. The City agrees to provide the following during Renter's periods of use of the Premises.
 - (1) The Premises for use by Renter.
 - (2) Electricity and other utilities for lighting, heating, and air conditioning, as customarily provided by the City for ice skating events at the Center.
 - (3) Cleaning and janitorial services.
 - (4) All necessary support services, including all ancillary staff necessary to hold the Event at the Center, as customarily provided by the City for ice skating events at the Center.
6. Renter's Responsibilities. Renter agrees to comply with the following terms and conditions during its use of the Premises.
 - (1) No alcoholic or malt beverages or glass containers shall be brought on the Premises.
 - (2) Renter shall not be permitted alcohol at any event.
 - (3) Each hockey players, while on the ice, shall wear a helmet and necessary protective equipment.
 - (5) Renter shall not, without the City's prior written consent: (i) collect spectator admission charges; (ii) sell or give away merchandise, equipment, food, beverages or any other items; (iii) engage in any type of commercial or fund raising activity on or about the Center or Premises. Renter shall submit to the City a written request for any of the above activities.
 - (6) Renter shall not permit any member of its group to be present on the ice while the ice resurfacing machine, is in operation.
 - (7) Renter shall strictly adhere to the dates and the starting and finishing times of its permitted periods of use as set forth in the ice schedule. Any practices or games that run past scheduled times will be billed at the applicable ice rate.
 - (8) Renter shall comply with all rules and regulations posted upon the Center.
 - (9) Renter agrees not to do any act or allow any act to be done during the Term of this Agreement which shall mar, deface or injure any part of the Center or Premises. Upon expiration of the Term, Renter shall deliver to the City the rented Premises aforesaid in as good a condition and repair as the same were at the beginning of the Term, excepting usual normal wear and tear.

- (10) Renter shall use the Center and Premises only in a safe and careful manner.
- (11) Renter shall be assigned locker rooms by the City for practices. Locker room keys must be checked out from the front desk with collateral. Keys will not be checked in or out by minors. The City will check the locker room after use for damage. After inspection, if the locker room is found to be reasonably free of trash and damage the Renter will receive collateral in return for locker room keys. Locker room care is the responsibility of the Renter. Any damages to locker rooms will be billed to Renter. Collateral will under no circumstances be returned without return of locker room keys.
- (12) Renter shall notify the City in writing of any cancellation of practices at least seventy-two (72) hours prior to the date of the practice. The Renter will be charged for the scheduled ice time if notification of cancellation or any alteration to the schedule is not communicated in writing to the City at least seventy-two (72) hours in advance. In addition, Renter must notify the City in writing not less than fourteen (14) days of the cancellation or alteration of the schedule of any scheduled hockey tournament. If the Renter does not provide fourteen (14) days notice of a cancellation or alteration of a tournament schedule, the City reserves the right to charge for ice time in accordance with this Agreement. Tournament schedules must be submitted to the City by no later than twenty-one (21) days prior to the start date of the tournament. In the event of inclement weather (city closure, road closure) an exception may be granted provided that funds paid to the Cheyenne Capitals for tournament play is refunded to the participants. Decisions on inclement weather cancellations will be at the discretion of the City.
- (13) Tournament schedules shall not be published until approved by the City. The City shall provide approval or changes within two (2) business days to the Renter.
- (14) Renter shall be responsible for the collection of funds or registration fees for their programs. The City will not accept payment on behalf of the Capital Youth Hockey Organization unless otherwise stated in Appendix B.
- (15) The birthday party room located in the lobby is the City's property. This room is available for Renter's use with a charge of \$25.00 per hour at the discretion of the City. One monthly board meeting prescheduled on a Monday thru Thursday evening will be allowed to take place without charge. Each meeting shall last no longer than three (3) hours and shall begin no later than 7 p.m. The room must be left in a clean condition. Prior to use, the Renter shall coordinate the scheduling of this room with the Center's Recreation Coordinator - Ice and Events. Any scheduled use outside of the above mentioned times or by persons other than Renter or its authorized representatives will be charged the hourly rate. The City will make the Party Room available for Renter use as a hospitality room without charge during tournaments held at Center until 10:00 am. Renter will clean the room. The Renter must remove all items from the building immediately.
- (16) During tournaments, the Renter will not have exclusive use of the entire facility when ice is rented for \$200/hr. Thus, there are certain areas such as the lobby,

arcade, and birthday party rooms that will remain open for regular business such as birthday parties, laser tag, etc. Renter may exclusively rent the entire facility at regular rental rates if exclusive use of the entire facility is desired. For tournament use, the Renter will have exclusive use of inner arena areas including ice surface, spectator stands, and locker rooms. Arena areas of ingress and egress shall remain available for use by the City.

- (17) For use of The City's copy machine, Renter will be charged \$0.20 per black and white copy and \$0.30 per color copy. Renter will be invoiced on a monthly basis.
 - (18) Complaints by Renter's clients must be first directed to the Renter and then the Renter can direct the complaints to the City through the Cheyenne Capitals President. The Renter will educate its participants regarding proper channels of communication.
 - (19) Outside food and beverage will not be allowed into the facility without the express written permission of the Recreation Coordinator - Ice and Events.
7. Concessions. The City specifically reserves to itself and its usual Center concessionaires the exclusive right to provide or sell, and retain the proceeds from the sale of all food and beverages and all other concessions at the Event. All concessions of food and beverage provided to Renter or its guests, invitees, or other Event attendees, shall be at an additional charge.
8. Indemnification; Governmental Immunity. The Renter agrees to defend, hold harmless, and indemnify the City, and its officials, employees, authorized agents and volunteers against any and all claims and costs, including attorney's fees, resulting from the Renter's activities under the provisions of this Agreement, and shall carry insurance as set forth in Agreement. The Renter acknowledges its understanding of this paragraph and realizes it may have a financial responsibility to the City. The City does not waive any applicable defenses and expressly reserves the right to invoke governmental immunity pursuant to the Wyoming Governmental Claims Act, Wyo. Stat. §1-39-101 et seq, for any claims arising out of the performance of this Agreement.
9. Insurance. 10. General Conditions; Insurance Requirements.

a. Renter shall file a Certificate of Insurance with the City of Cheyenne verifying each type of insurance coverage listed below.

b. The Certificate of Insurance shall be submitted to and approved by the City of Cheyenne prior to commencement of and during all activities conducted under this Agreement.

Type of Coverage	Minimum Limits
Commercial General Liability (Including Products and	\$1,000,000 per Occurrence

Completed Operations;	\$2,000,000 Aggregate
Workers' Compensation OR	Statutory
Employer's Liability-- Policy Limits	\$500,000 Each Accident \$500,000 Each Disease- \$500,000 Each Disease/Each Employee

c. It is understood and agreed that these policies, except for worker's compensation or employer's liability, are primary and not contributory. All policies required under this contract shall be in effect for the duration of this Agreement and for so long as Renter is conducting operations under this Agreement. It shall be an affirmative obligation upon Renter to immediately notify in writing the city risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation or substantive change of any insurance coverage required by this contract, and failure to do so shall be construed to be a breach of this contract.

d. The City of Cheyenne shall be named as an additional insured on Renter's insurance policies, except for workers' compensation and employer's liability policies, and Renter shall provide a copy of the endorsements providing this coverage.

e. The City has the right to reject a certificate of insurance if Renter's insurer is widely regarded in the insurance industry as financially unstable. Any insurance company providing coverage under this contract shall have a minimum A.M. Best rating of A- (excellent).

e.. The City has the right to review the insurance certificates of any or all subcontractors used by Renter. Further, the City requires that any subcontractor hired or employed by Renter to perform services pursuant to this Agreement shall provide insurance at least equivalent to that required of Renter.

f. The City has the right to increase the required minimum limit of liability on any activity conducted by Renter as warranted by an increase in hazard. Examples of increased hazard include, but are not limited to:

1. handling of hazardous materials
2. activities involving large congregations of people

g. The City shall have the right to consult with Renter's insurance carriers and agents for disclosure of relevant policy information, but the City's failure to request or review such policies, endorsements, or certificates shall not affect the City's rights or Renter's obligations hereunder. Disclosure of relevant policy information would specifically involve, but is not limited to:

1. exclusions
2. deductibles
3. claims in progress which could significantly reduce the annual aggregate limit

10. Security.

- (1) If requested by the City, Renter shall provide and pay for its own security personnel in sufficient numbers to police Renter's use of the Premises and any spectators, guests or invitees attending Renter's Event. Any security personnel to be provided by Renter must be licensed in accordance with Chapter 5.48 of the Cheyenne City Code and approved in writing by the City and the City's Chief of Police, or authorized designee, no later than ten (10) days in advance of Renter's use of the Premises. In the event the City requests Renter to provide such security and Renter fails to obtain licenses required by law or the City's approval of personnel in a timely fashion or fails to provide adequate security, as determined by the City in its sole discretion, the City shall have the right to provide security personnel at regular rate for weekday duty and at double-time rate for weekend duty to be paid by Renter, or, alternatively, shall have the right to terminate this Agreement.
 - (2) If, in the sole judgment of the City, Renter's use of the Premises at any time poses a danger to the safety of any other user of the Premises or City employees or presents an unreasonable risk of damage to City property, the City reserves the right to eject from the Premises any person making use of the Premises through or in association with Renter or any participant(s), attendee(s), or spectator(s) of Renter's group, to restrict Renter's activities on the Premises, to cancel any period of Renter's use of the Premises or to terminate this Agreement in its entirety. Any such action by the City shall not be deemed to be a breach of this Agreement and the City shall not be liable for damages for such an action, nor shall the City be obligated to return to Renter any portion of the rent fee paid to The City hereunder. The City's reservation of rights in this section shall not in any way relieve or limit Renter's duty to indemnify the City pursuant to this Agreement.
11. Responsibility for Safety. The City shall be responsible to inspect the Premises subject to this Agreement prior to each use and shall be responsible to bring to Renter's attention any potential problems or defects. Moreover, Renter shall be responsible for all crowd control while in possession of the Premises.
12. Assumption of Risk. Renter, and all persons using the Center and Premises hereunder, for any purpose, under this Agreement, and all invitees of Renter, assume all risk and danger incidental to the use of the Center and Premises for the purposes of this Agreement. If Renter is leasing the Premises for the purpose of playing hockey, Renter acknowledges that these risks and dangers include, but are not limited to, the danger of being injured by pucks, hockey sticks and players.
13. Control of Premises. The City and its authorized representatives shall have the right at all times to enter upon and have access to the Premises. In leasing the use of the Premises to Renter, it is understood that the City does not relinquish the right to control the management thereof and to enforce all necessary rules and regulations. The decision of the City's representative as to the number of persons that can safely and freely move about in the Premises shall be final.

14. Reservation of Rights. The City reserves all rights not expressly granted to Renter hereunder, and may, during the Term, use any or all portions of the Premises not specifically licensed to Renter hereunder. The City reserves the right to eject from the Center and/or Premises any person for any reason which the City, in its sole discretion, deems sufficient.
15. Licenses. Renter shall secure in advance, prior to commencement of the Term, all licenses and permits that may be required by or in connection with use of the Premises for the Event, including without limitation any licenses or permits required by State law, the Cheyenne City Code, and by any performing arts societies, such as ASCAP, BMI and/or SESAC. All licenses and permits must be present on Premises during the entire Event.
16. Promotional Activity. Renter agrees not to publicly conduct any promotional activity and not to advertise any Event to be conducted at the Center without the prior written consent of the City. If promotion and/or advertising of the Event is permitted by the City, all advertising and promotion of the Event shall be the responsibility of Renter, at its sole cost. Renter shall be permitted to advertise and/or promote season registration with fourteen days written notice to the City.
17. Termination. In the event Renter at any time fails to comply with any of the terms and conditions of this Agreement, and fails to cure such non-compliance within five (5) days of its receipt of written notice by the City describing such noncompliance, the City may terminate this Agreement and retain as damages any fees paid by Renter under this Agreement, without prejudice to any other legal rights or remedies the City may have.
18. Assignment. Renter may not assign its right to use the Premises to any other person, group or organization without the express written consent of the City, which the City may grant or withhold, in its sole discretion.
19. Independent Contractors. The relationship between the City and Renter is that of independent contractors and not agents or employees. Under no circumstances shall this rent Agreement be considered a contract of partnership or joint venture. The City shall have no liability for any of the debts, accounts, obligations or other liabilities of the Renter, and Renter shall have no authority to obligate or bind the City in any manner.
20. Force Majeure. In the event the City is unable to perform any of the terms or conditions of this Agreement due to events or causes outside the City's control, such as destruction or damage to the Center or Premises or unfitness of the Center or Premises for occupancy as a result of fire or act of God, riot, labor, strike, national or local emergency, or other cause not entirely within the control of the City, the City shall not be deemed to be in breach of this Agreement or liable to Renter for damages, but shall return to Renter any unused portion of the rent fees paid to the City by Renter, less the cost of any expenses incurred by the City hereunder.
21. Applicable Law. This Agreement shall be construed and enforced in accordance with the laws of the State of Wyoming and may be enforced in any court of competent jurisdiction in the State of Wyoming.

22. Entire Agreement. This Agreement consisting of eleven (11) pages including Appendix A and Appendix B, constitutes the entire Agreement between the City and Renter and cannot be amended except in writing signed by both parties. The City shall not be bound by any agreements, conditions, representations or warranties relating to the Premises or Renter's use thereof, oral or written, express or implied, not contained in this Agreement.

IN WITNESS WHEREOF, The City and Renter have executed this Agreement as of the date and year first above written.

RENTER: CHEYENNE CAPTIALS YOUTH HOCKEY ASSOCIATION

Address: _____

By (printed name): _____

Title: _____

Signature: _____

Date: _____

THE CITY: CITY OF CHEYENNE

Rick Kaysen, Mayor

(SEAL)

Date: _____

ATTEST:

Carol Intlekofer, City Clerk

APPENDIX A

I. **PREMISES: PORTIONS OF CITY OF CHEYENNE OWNED ICE AND EVENTS CENTER RENTD:** Ice Surface, Locker Rooms

II. **TERM:**
Periodic times to be scheduled and mutually agreed upon
Beginning: October 29, 2012
Ending: March 10, 2013

III. **PURPOSE OF RENT:**
To provide a season of ice time to the Cheyenne Capitals Youth Hockey Association for games, practices and tournaments.

APPENDIX B

The Center gives the Cheyenne Capitals official written approval to conduct the following fundraising activities during the Cheyenne Capitals use of the facility. The City is not responsible for accidents or incidents associated with any of the following items. The City will not collect or hold funds for any fundraising events sponsored by the Cheyenne Capitals. Renter will notify The City in writing two weeks (14 days) prior if any of the following activities are to take place. The City reserves the right to approve location and times for the following activities.

1. Sale of Cheyenne Capitals brand merchandise.
2. Sale of pro shop equipment not sold by The City in the center. (A complete list of which can be made available upon request)
3. Raffle tickets for the annual fundraiser.
4. Photographs.
5. Puck Tosses.
6. Holiday Wreath sale and storage. (Wreaths must be distributed by Friday at noon the week of delivery unless they are delivered after 5pm Thursday at which point distribution can be accomplished by Sunday 10am. The Cheyenne Capitals will provide the scheduled week of delivery to the rink three weeks prior so as to prevent scheduling conflicts.)